LAF YOMI

Bekhorot 37 · October 25, 2026

ON TODAY'S DAF

Bekhorot 37: the close of perek Kol Pesulei HaMukdashin and the opening of perek Elu Mumin — three laymen may permit a bechor where no expert exists (and Tosafot already despaired of finding one), Rav Nachman's self-nomination as the model chacham, the refund rules for bechor and tereifah meat sold by mistake, and the new perek's head-to-toe catalogue of blemishes, starting with the ear.

בני כנסת ג' · QUALIFIED BY ATTENDANCE



1. The mishnah permits slaughtering a bechor on the ruling of בני כנסת ג' — three men of the shul. Elefant asks: what qualifies them? They really weren't great talmidei chachamim — but they are people who are in the yeshiva, in the shul.

“If you sit in shul in beit midrash all day, you're going to absorb and you're going to hear halacha — and therefore they're somewhat qualified. Expertise by osmosis: the shul air does the training.”

— Rabbi Elefant

In the daf: Bekhorot 37a · מתירין את הבכור במקום שאין מומחה לג' — three regular Jews may permit a bechor · Hear it in the shiur: Rabbi Moshe Elefant · 2:26

הפרת נדרים · RAV NACHMAN, THE SELF-NOMINATED CHACHAM



2. Rabbi Yehuda requires that one of the three men annulling a vow be a chacham. The Gemara asks: במקום שאין חכם כגון מאן — like whom, exactly? Rav Nachman answers: כגון אנא — like me.

“The mefarshim defend him: יהללוך זר ולא פיך — let strangers praise you, not your own mouth — applies only where people know who you are. But where the halacha itself needs a definition, the pshat flips: if there aren't others to praise you, then פיך — praise yourself. Rav Nachman didn't just meet the standard; he was the standard.”

— Rabbi Elefant

In the daf: Bekhorot 37a · אמר רב נחמן: במקום שאין חכם כגון מאן? כגון אנא · Hear it in the shiur: Rabbi Moshe Elefant · 14:16

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מה שאכל אכל · THE SOUL THAT DIDN'T ENJOY DINNER



3. A butcher sold bechor meat without showing it to a chacham. The buyer ate it, then demanded his money back. Rashi: it's a kenas, a fine. The Sema: something else entirely.

“When I buy meat, I'm intending to enjoy it — and even though I physically enjoyed the meat, I ate the piece for dinner, but my neshama certainly didn't have any hana'ah from that meat, which is asur. Body: fed. Soul: unimpressed. Full refund.”

— Rabbi Elefant

In the daf: Bekhorot 37a · מה שאכל אכל ויחזיר לו דמים — השוחט את הבכור · Hear it in the shiur: Rabbi Moshe Elefant · 21:33

הבשר יקבר · WHO BURIES THE CONTRABAND?



4. The mishnah: meat not yet eaten must be buried, and the money returned. But who does the burying — buyer or seller? The Sema and the Taz argue.

“The Sema: the customer buries it — because this seller is a suspect individual who sells meat he's not supposed to sell, and if we hand it back, who's to say he won't just go sell it elsewhere? The Taz: no need — there's already enough publicity around this meat. One man's contraband is another man's already-ruined reputation.”

— Rabbi Elefant

In the daf: Bekhorot 37a · הבשר יקבר — ומה שלא אכלו · Hear it in the shiur: Rabbi Moshe Elefant · 26:09

מאי אפסדתך · YOU ATE MY LOOPHOLE



5. Rabbi Shimon ben Elazar: for bechor meat, which isn't repulsive, the buyer pays for the benefit he had — he only gets the difference back. The Gemara objects: what loss did he cause? The seller couldn't have done anything with an unblemished bechor anyway!

“The answer: the seller sold a cut from the blemished spot, and could have shown it to a chacham — אי לאו דאכלת הוה מחזינא ליה ושרי ליה כרבי יהודה. 'If you hadn't eaten it, I could have gotten it permitted.' You didn't just eat dinner — you ate the seller's loophole.”

— Rabbi Elefant

In the daf: Bekhorot 37a · אי לאו דאכלת הוה מחזינא ליה — ולמימר ליה מאי אפסדתך · Hear it in the shiur: Rabbi Moshe Elefant · 32:13